Montgomery County District Court

Cause No. 2025-CV-0019

Caleb Hernandez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Caleb Hernandez

Date:	December 26, 2025
Location:	Offices of Bauer & Bryant Law Group
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Michael Duncan, Bauer & Bryant Law Group

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record, but my attorney has it on file. You can refer to me as the plaintiff.

Q: That's fine. Have you ever given a deposition before?

A: No, this is my first time.

Q: Then let me explain the ground rules. You're under oath, so your answers carry the same weight as testimony in court. If you don't understand a question, tell me and I'll rephrase it. If you answer, I'll assume you understood it. Is that clear?

A: Yes, that's clear.

Q: Good. Let's talk about the accident. Where were you when it happened?

A: I was in Pearland, Texas, driving through an intersection on a weekday afternoon. I was making a left turn across the opposing lanes.

Q: Describe the intersection for me.

A: It's a busy four-way inetrsection with a traffic signal. I had a green arrow for the left turn, or at least I believed I did. I started to turn, and then a vehicle coming from the other direction struck the front driver's side of my car.

Q: Did you see the other vehicle before the impact?

A: Not clearly. I saw headlights, but I didn't register how fast it was movnig until it was already on me.

Q: After the collision, what happened next?

A: My car spun partway around. My wrist hit the steering wheel and the airbag deployed. I got out and sat on the curb because my wrist was throbbing and I felt dizzy.

Q: Did you seek medical care that day?

A: Yes. An ambulance took me to the emergency room. They took X-rays and told me my wrist was fractured.

Q: What treatment have you received since then?

A: I had a splint for the first few weeks, then a cast. I've been going to physical therapy twice a week for hand strength and range of motion. My doctor also prescribed pain medication, which I've taken less of as time goes on.

Q: How has the injury affected your daily life?

A: Simple things are hard. I can't open jars easily, I had to have someone help me with buttoning my shirts, and I stopped cooking because chopping vegetables hurts. I also haven't been able to lift my grandchildren the way I used to.

Q: Have you been able to return to work?

A: I've had to modify my duties. I do more of my work by phone and computer now, and I can't do the lifting part of my job.

Q: Before the accident, were you having any problems with that wrist?

A: No. I had no problems with it at all.